

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.C.R. 1022
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Article IV, part 2, section 1, Constitution of Arizona, is
3 proposed to be amended as follows if approved by the voters and on
4 proclamation of the Governor:

5 1. Senate; house of representatives; members; special
6 session on petition of members; congressional and
7 legislative boundaries; citizen commissions

8 Section 1. ~~(1)~~ A. The senate shall be composed of one
9 member elected from each of the thirty ~~legislative~~ SENATE
10 districts established pursuant to this section. EACH SENATE
11 DISTRICT SHALL CONSIST OF EXACTLY AND ONLY THREE
12 GEOGRAPHICALLY SEPARATE HOUSE OF REPRESENTATIVES DISTRICTS.

13 B. The house of representatives shall be composed of
14 ~~two~~ NINETY members, ONE OF WHOM IS elected from each of the
15 ~~thirty legislative~~ NINETY HOUSE OF REPRESENTATIVES districts
16 established pursuant to this section.

17 ~~(2)~~ C. ~~Upon~~ ON the presentation to the governor of a
18 petition bearing the signatures of not less than two-thirds of
19 the members of each house, requesting a special session of the
20 legislature and designating the date of convening, the
21 governor shall promptly call a special session to assemble on
22 the date specified. At a special session so called the
23 subjects which may be considered by the legislature shall not
24 be limited.

25 ~~(3)~~ D. By February 28 of each year that ends in one,
26 an independent redistricting commission shall be established
27 to provide for the redistricting of congressional and state
28 legislative districts. The independent redistricting

1 commission shall consist of five members. ~~no~~ NOT more than
 2 two members of the independent redistricting commission shall
 3 be members of the same political party. Of the first four
 4 members appointed, ~~no~~ NOT more than two shall reside in the
 5 same county. Each member shall be a registered Arizona voter
 6 who has been continuously registered with the same political
 7 party or registered as unaffiliated with a political party for
 8 three or more years immediately preceding appointment, ~~AND~~ AND
 9 who is committed to applying ~~the provisions of~~ this section in
 10 an honest, independent and impartial fashion and to upholding
 11 public confidence in the integrity of the redistricting
 12 process. Within the three years previous to appointment,
 13 members shall not have been appointed to, elected to, or a
 14 candidate for any other public office, including precinct
 15 committeeman or committeewoman but not including school board
 16 member or officer, and shall not have served as an officer of
 17 a political party, or served as a registered paid lobbyist or
 18 as an officer of a candidate's campaign committee.

19 ~~(4)~~ E. The commission on appellate court appointments
 20 shall nominate candidates for appointment to the independent
 21 redistricting commission, except that, if a politically
 22 balanced commission exists whose members are nominated by the
 23 commission on appellate court appointments and whose regular
 24 duties relate to the elective process, the commission on
 25 appellate court appointments may delegate to such existing
 26 commission (hereinafter called the commission on appellate
 27 court appointments' designee) the duty of nominating members
 28 for the independent redistricting commission, and all other
 29 duties assigned to the commission on appellate court
 30 appointments in this section.

31 ~~(5)~~ F. By January 8 of years ending in one, the
 32 commission on appellate court appointments or its designee
 33 shall establish a pool of persons who are willing to serve on
 34 and are qualified for appointment to the independent
 35 redistricting commission. The pool of candidates shall
 36 consist of twenty-five nominees, with ten nominees from each
 37 of the two largest political parties in Arizona based on party
 38 registration, and five who are not registered with either of
 39 the two largest political parties in Arizona.

40 ~~(6)~~ G. Appointments to the independent redistricting
 41 commission shall be made in the order set forth below. No
 42 later than January 31 of years ending in one, the highest
 43 ranking officer elected by the Arizona house of
 44 representatives shall make one appointment to the independent
 45 redistricting commission from the pool of nominees, followed
 46 by one appointment from the pool made in turn by each of the
 47 following: the minority party leader of the Arizona house of

1 representatives, the highest ranking officer elected by the
2 Arizona senate, and the minority party leader of the Arizona
3 senate. Each such official shall have a seven-day period in
4 which to make an appointment. Any official who fails to make
5 an appointment within the specified time period will forfeit
6 the appointment privilege. ~~in the event that~~ IF there are two
7 or more minority parties within the house or the senate, the
8 leader of the largest minority party by statewide party
9 registration shall make the appointment.

10 ~~(7)~~ H. Any vacancy in the above four independent
11 redistricting commission positions remaining as of March 1 of
12 a year ending in one shall be filled from the pool of nominees
13 by the commission on appellate court appointments or its
14 designee. The appointing body shall strive for political
15 balance and fairness.

16 ~~(8)~~ I. At a meeting called by the secretary of state,
17 the four independent redistricting commission members shall
18 select by majority vote from the nomination pool a fifth
19 member who shall not be registered with any party already
20 represented on the independent redistricting commission and
21 who shall serve as chair. If the four commissioners fail to
22 appoint a fifth member within fifteen days, the commission on
23 appellate court appointments or its designee, striving for
24 political balance and fairness, shall appoint a fifth member
25 from the nomination pool, who shall serve as chair.

26 ~~(9)~~ J. The five commissioners shall then select by
27 majority vote one of their members to serve as vice-chair.

28 ~~(10)~~ K. After having been served written notice and
29 provided with an opportunity for a response, a member of the
30 independent redistricting commission may be removed by the
31 governor, with the concurrence of two-thirds of the senate,
32 for substantial neglect of duty, gross misconduct in office,
33 or inability to discharge the duties of office.

34 ~~(11)~~ L. If a commissioner or chair does not complete
35 the term of office for any reason, the commission on appellate
36 court appointments or its designee shall nominate a pool of
37 three candidates within the first thirty days after the
38 vacancy occurs. The nominees shall be of the same political
39 party or status as was the member who vacated the office at
40 the time of ~~his or her~~ appointment, and the appointment other
41 than the chair shall be made by the current holder of the
42 office designated to make the original appointment. The
43 appointment of a new chair shall be made by the remaining
44 commissioners. If the appointment of a replacement
45 commissioner or chair is not made within fourteen days
46 following the presentation of the nominees, the commission on
47 appellate court appointments or its designee shall make the

1 appointment, striving for political balance and fairness. The
2 newly appointed commissioner shall serve out the remainder of
3 the original term.

4 ~~(12)~~ M. Three commissioners, including the chair or
5 vice-chair, constitute a quorum. Three or more affirmative
6 votes are required for any official action. Where a quorum is
7 present, the independent redistricting commission shall
8 conduct business in meetings open to the public, with ~~48~~
9 FORTY-EIGHT or more hours public notice provided.

10 ~~(13)~~ N. A commissioner, during the commissioner's term
11 of office and for three years thereafter, shall be ineligible
12 for Arizona public office or for registration as a paid
13 lobbyist.

14 ~~(14)~~ O. The independent redistricting commission shall
15 establish congressional and legislative districts. The
16 commencement of the mapping process for both the congressional
17 and legislative districts shall be the creation of districts
18 of equal population in a grid-like pattern across the state.
19 Adjustments to the grid shall then be made as necessary to
20 accommodate the goals as set forth below:

21 ~~A.~~ 1. Districts shall comply with the United States
22 Constitution and the United States voting rights act. ~~;~~

23 ~~B.~~ 2. Congressional districts shall have equal
24 population to the extent practicable, and state legislative
25 districts shall have equal population to the extent
26 practicable. ~~;~~

27 ~~C.~~ 3. Districts shall be geographically compact and
28 contiguous to the extent practicable. ~~;~~

29 ~~D.~~ 4. District boundaries shall respect communities of
30 interest to the extent practicable. ~~;~~

31 ~~E.~~ 5. To the extent practicable, district lines shall
32 use visible geographic features, city, town and county
33 boundaries, and undivided census tracts. ~~;~~

34 ~~F.~~ 6. To the extent practicable, competitive districts
35 should be favored where to do so would create no significant
36 detriment to the other goals.

37 ~~(15)~~ P. Party registration and voting history data
38 shall be excluded from the initial phase of the mapping
39 process but may be used to test maps for compliance with the
40 above goals. The places of residence of incumbents or
41 candidates shall not be identified or considered.

42 ~~(16)~~ Q. The independent redistricting commission shall
43 advertise a draft map of congressional districts and a draft
44 map of legislative districts to the public for comment, which
45 comment shall be taken for at least thirty days. Either or
46 both bodies of the legislature may act within this period to
47 make recommendations to the independent redistricting

1 commission by memorial or by minority report, which
2 recommendations shall be considered by the independent
3 redistricting commission. The independent redistricting
4 commission shall then establish final district boundaries.

5 ~~(17)~~ R. The provisions regarding this section are
6 self-executing. The independent redistricting commission shall
7 certify to the secretary of state the establishment of
8 congressional and legislative districts.

9 ~~(18)~~ S. ~~Upon~~ ON approval of this amendment, the
10 department of administration or its successor shall make
11 adequate office space available for the independent
12 redistricting commission. The STATE treasurer ~~of the state~~
13 shall make \$6,000,000 available for the work of the
14 independent redistricting commission pursuant to the year 2000
15 census. Unused monies shall be returned to the ~~state's~~ STATE
16 general fund. In years ending in eight or nine after the year
17 2001, the department of administration or its successor shall
18 submit to the legislature a recommendation for an
19 appropriation for adequate redistricting expenses and shall
20 make available adequate office space for the operation of the
21 independent redistricting commission. The legislature shall
22 make the necessary appropriations by a majority vote.

23 ~~(19)~~ T. The independent redistricting commission, with
24 fiscal oversight from the department of administration or its
25 successor, shall have procurement and contracting authority
26 and may hire staff and consultants for the purposes of this
27 section, including legal representation.

28 ~~(20)~~ U. The independent redistricting commission shall
29 have standing in legal actions regarding the redistricting
30 plan and the adequacy of resources provided for the operation
31 of the independent redistricting commission. The independent
32 redistricting commission shall have sole authority to
33 determine whether the Arizona attorney general or counsel
34 hired or selected by the independent redistricting commission
35 shall represent the people of Arizona in the legal defense of
36 a redistricting plan.

37 ~~(21)~~ V. Members of the independent redistricting
38 commission are eligible for reimbursement of expenses pursuant
39 to law, and a member's residence is deemed to be the member's
40 post of duty for purposes of reimbursement of expenses.

41 ~~(22)~~ W. Employees of the department of administration
42 or its successor shall not influence or attempt to influence
43 the district-mapping decisions of the independent
44 redistricting commission.

45 ~~(23)~~ X. Each commissioner's duties established by this
46 section expire ~~upon~~ ON the appointment of the first member of
47 the next redistricting commission. The independent

1 redistricting commission shall not meet or incur expenses
2 after the redistricting plan is completed, except if
3 litigation or any government approval of the plan is pending,
4 or to revise districts if required by court decisions or if
5 the number of congressional or legislative districts is
6 changed.
7 2. Applicability; 2042 election
8 This act applies to legislative terms of office that
9 begin in ~~[2033]~~ [2043] and later.
10 2. The Secretary of State shall submit this proposition to the
11 voters at the next general election as provided by article XXI,
12 Constitution of Arizona.

13 Enroll and engross to conform
14 Amend title to conform

SCR1022GOV.docx
02/03/2026
1:52 PM
C: MR
130ZBKZYF